GENERAL TERMS AND CONDITIONS

CLAUSE #1 CONFIDENTIAL INFORMATION

In this Contract, **"Confidential Information"** means all technical and commercial information relating to the Purchase order that is disclosed to SUPPLIER by the Pakka Limited either orally or in writing while carrying out the Scope of Services, except for the following:

a. Any information that the Pakka Limited consents to be distributed or disclosed.

b. Any information that is required by law or the rules of any applicable regulatory organization, to be disclosed.

c. Information in the public domain or entering the public domain without breach of the confidentiality obligations.

d. Information already in the possession of SUPPLIER.

e. Information received from a third party without an obligation to confidentiality, and information independently developed by SUPPLIER without use of the confidential information disclosed under this Contract.

SUPPLIER understands and acknowledges that the Confidential Information has been developed or obtained by the Pakka Limited by the investment of the significant time, effort, and expense, and that the Confidential Information is a valuable, special, and unique asset of the Pakka Limited, which provides the Pakka Limited with a significant competitive advantage and needs to be protected from improper disclosure.

In consideration for the provision of the Confidential Information, the SUPPLIER agrees not to disclose or communicate any of the Confidential Information to any person, except for the disclosure to the underwriters and those directors, employees or affiliates of the SUPPLIER who need to receive Confidential Information for the purposes of executing the Scope of services.

Without prejudice to the foregoing, SUPPLIER will be responsible for any breach of this agreement through its representatives.

CLAUSE #2 INTELLECTUAL PROPERTY RIGHTS

SUPPLIER shall warrant that the items under the Scope of Service, covered under the Contract, do not and shall not infringe any patent, utility model, registered design, trademark, copyright or other intellectual property right registered by any Third Party and in event of any claim, loss or damage suffered by Pakka Limited or any infringement action being taken against Pakka Limited by Third Party, the same shall be defended at SUPPLIER 's cost and SUPPLIER undertakes to indemnify Pakka Limited for any such loss or damage.

CLAUSE #3 CONFLICT OF INTEREST

SUPPLIER has not been appointed by any other party on this Project and has no conflict of interest as at the date of this contract in respect of this Appointment. SUPPLIER will notify the Pakka Limited as soon as possible of any instructions it receives from third parties, who may in its reasonable opinion conflict with the interests of the Pakka Limited regarding Scope of Services provided under the terms of this Contract.

CLAUSE #4 FORCE MAJEURE

Neither party hereto shall be liable to other party if the performance of its obligations is delayed by conditions constituting Force Majeure under this Clause. Force Majeure conditions shall be such as, but not limited to, compliance with statutory laws, regulations or orders of the Central, State or Local Government, statutory bodies, war and warlike conditions (irrespective of whether war has been declared or not); acts of civil and military authority, earthquake, floods, fires, embargoes, revolts, sabotage, rebellion and strikes and lockouts and provided further that none of the conditions mentioned in this clause shall be force majeure conditions unless such condition or conditions actually affect the performance of the obligations of either party.

Should, however, any force majeure condition hereinabove mentioned occur and continue for a period exceeding fifteen (15) days the parties hereto undertake to sit together and devise means for expeditious and proper performance of the obligations of the parties under this Contract.

It is further understood and agreed that if the duration of Force Majeure extends for more than four (4) consecutive months or periods of suspension or reduction total more than six (6) months in any twelve (12) months period, then either Pakka Limited or SUPPLIER may terminate this contract.

CLAUSE #5 ASSIGNMENT AND SUBLETTING

Pakka Limited shall be entitled to assign the whole or any part of the Contract or any benefit or interest in or under the Contract without the consent of SUPPLIER. In particular, SUPPLIER hereby consents to the grant and creation by Pakka Limited of a security interest in and assignment of this Contract and any and all of the Pakka Limited's rights, title and interests in and under this Contract in favour of any Lender or its Security Agent or Trustee; and in furtherance of and to give effect to such security interest and assignment, SUPPLIER agrees to enter into such Contracts, Direct Contracts and consents and deliver such legal opinions as are reasonably customary and as may be required by any of the Lenders.

SUPPLIER shall not be entitled to assign any part of the Contract or any benefit or interest in or under this Contract without the prior written consent of Pakka Limited

The assignment shall however be subject to the condition that all rights, title, and interests of SUPPLIER provided in this Contract with Pakka Limited shall remain valid and enforceable against the assignee in the event of any such assignment.

CLAUSE #6 LIMITATIONS OF LIABILITY

The limitations and exclusions of liability set forth in this Contract and shall apply whether the claim for liability is based on contract, tort (including negligence), warranty, strict liability, indemnity or otherwise.

In particular:

(I) in no event shall SUPPLIER or any of its affiliates or subcontractors or suppliers be liable to Pakka Limited for any:

(1) loss of profits or loss of revenue or business opportunity (whether foreseeable or not), loss by reason of shutdown of facilities or inability to operate a facility at full capacity, cost of obtaining other means for performing the functions performed by the equipment, loss of future contracts, claims of customers, cost of money or loss of use of capital, in each case whether foreseeable or not; or

(2) any incidental, indirect, special, or consequential damages of any nature.

(3) Any loss of human life or loss of limb of any of their persons at site, SUPPLIER shall purchase adequate insurance mandated under Guatemala Laws to cover the losses or compensation under such unforeseen or unfortunate events and SUPPLIER shall provide the proof of such insurance cover to Pakka Limited before commencing work on site. SUPPLIER shall further absolve PAKKA LIMITED, its personnel, representatives', appointees or assignees from any criminal intent or proceedings against them in such cases.

(ii) the remedies provided in this Contract are the Pakka Limited's exclusive remedies

(iii) Not withstanding anything said or implied, SUPPLIER or any of its affiliates are not responsible for any delays in project execution, any cost escalations, any shortfall in equipment performance, reliability in operation, workmanship, materials whatsoever, not attributable to them leading to the consequent losses to Pakka Limited

SUPPLIER's responsibility for the correctness of engineering documentation to be delivered under this contract shall be limited to rectifying the drawings and issuing corrected drawings, when such error may be noticed. The responsibility of SUPPLIER to provide such corrected drawings terminates after the expiry of the warranty period.

CLAUSE #7 SUSPENSION, TERMINATION

7.1 PAKKA LIMITED, without prejudice to any other remedy for breach of contract, by ten days written notice of default sent to SUPPLIER, may terminate the Contract in whole or in part and no compensation whatsoever shall be payable, if SUPPLIER fails to comply with any of the provisions or requirements of PAKKA LIMITED, or within any extension thereof granted by PAKKA Limited in the event of such cancellation of the Contract, PAKKA Limited shall be entitled to arrange for the procurement of services from alternative source at the cost of SUPPLIER. SUPPLIER is liable to refund within 30 days of receiving such notice, any advances or payments received in excess of earned value on the project or received for undelivered portion of the work upon such termination. The Waiver of One default shall not be considered as automatic waiver of any other default.

7.2 Either Party may also terminate this Contract upon written notice to the other Party upon the breach by the other Party of one of its material obligations under this Contract and the failure to affect a cure (or commence and diligently pursue a cure) within 60 days receipt of ten days written notice from the other party specifying the breach.

7.3 Either Party may terminate this Contract in case of Force Majeure, in accordance with the stipulations set forth in CLAUSE 4 hereof.

7.4 Either Party may terminate this Contract if the other Party becomes insolvent or bankrupt or otherwise is put under public administration due to its failure to fulfil its operational or financial obligations.

CLAUSE #8 RESOLUTION OF DISPUTES

Any dispute or difference arising between the parties under this Agreement, as to their respective rights or obligations in terms hereof or relating thereto or incidental thereto or as to the interpretation of any of the terms hereof, it will be resolved initially amicably and by mutual agreement.

CLAUSE #9 INDEMNITY

SUPPLIER shall indemnify and hold harmless PAKKA Limited and its employees, representatives, assignees and officers from and against any and all suits, actions or administrative proceedings, claims, demands, losses, damages, costs and expenses of whatsoever nature, including attorney's fees and expenses, which Pakka Limited may suffer as a result of any infringement or alleged infringement of any patent, utility model, registered design, trademark, copyright or other intellectual property right registered or otherwise existing.

CLAUSE #10 PROGRESS REPORT

SUPPLIER shall regularly furnish the Monthly Progress Reports for the work carried out so as to reach PAKKA LIMITED, on 7th working day of every **month** for preceding **month in addition to the reports as specified in the Project Scope of Work.**

CLAUSE #11 JURISDICTION

This contract will be subject to the laws and jurisdiction of the Ayodhya, U.P.

CLAUSE #12 PROTOCOLIZATION

The appearing parties agree that any of them may request the translation into Spanish and protocolization of this contract, which is issued in two originals, identified as original one and original two, the first being in the possession of Pakka Limited. and the second in power of SUPPLIER.

CLAUSE #13 GENERAL

13.1 The Contract enters into force upon signature by the Parties. The contract effective commencement date shall be reckoned as_____

13.2 All correspondence and documentation shall be in English language only. All drawings and technical documents relating to the machinery and equipment, or their manufacture submitted by one party to the other, prior the formation of the Contract, shall remain the property of the Submitting party.

13.3 This contract contains the entire agreement between SUPPLIER and the Pakka Limited and saved, except what is recorded. In this Contract, there are no representations, understandings, assurances, or agreements. Whatever correspondence and/or discussions may have taken place between SUPPLIER and the Pakka Limited have been incorporated in this Contract and provisions of this Contract shall prevail even if there be any inconsistency in the correspondence and / or discussion taken place earlier.

13.4 No variation and/or amendment of this Contract shall be effective and /or binding on either party unless the same are entered into as a supplemental Contract under the signature of duly authorized representatives of SUPPLIER and the Pakka Limited.

13.5 Any drawings or other documents issued and submitted by SUPPLIER to Pakka Limited as related to this contract remain intellectual property of Pakka Limited.

13.6 If any provision of this Contract is held invalid, illegal, or incapable of being enforced by any rule of law or public policy, all other provisions of this Contract shall nevertheless remain in full force and effect so long as the economic or legal substance of the transactions contemplated hereby is not affected in any manner adverse to any Party. Upon such determination that any provision is invalid, illegal, or incapable of being enforced, the Parties hereto shall negotiate in good faith to modify this Contract so as to affect the original intent of the Parties as closely as possible in an acceptable manner to the end that the transactions contemplated hereby are fulfilled.

13.7 Cost and time impacts due to changes in laws, regulations, technical standards, taxes, customs duties, etc. after contract signature date are for the account of the Pakka Limited.

----------END OF DOCUMENT----------